

TENTATIVE RULING

Case: **Quintana v. Ford Motor Company**
Case No. CV-2025-3027

Hearing Date: **February 5, 2026** **Department Eleven** **9:00 a.m.**

The Court notes that defendant Ford Motor Company failed to properly meet and confer “in person or by telephone, or by video conference” prior to the filing of this demurrer. (Code Civ. Proc., § 430.41; Porter Decl., ¶ 2, Exhibit A.) However, the Court may not overrule a demurrer for failure to meet and confer. (Code Civ. Proc., § 430.41, subd. (d); see *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355.)

The Court rules on defendant’s demurrer to plaintiff’s complaint as follows:

- Defendant’s demurrer on the ground that the complaint fails to state facts to support the unlawful prong of a cause of action pursuant to Business and Professions Code 17200 is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) The Court finds that plaintiff Freddie Quintana alleges facts sufficient to state this prong of a section 17200 cause of action. (*Korea Supply Co. v. Lockheed Martin Corp.* (2003) 29 Cal.4th 1134 [under section 17200, a practice may be deemed unfair even if not specifically proscribed by some other law]; Complaint, ¶ 38.)
- Defendant’s demurrer on the ground that the complaint fails to state facts to support the unfair prong of a cause of action pursuant to Business and Professions Code 17200 is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) The Court finds that plaintiff alleges facts sufficient to state this prong of a section 17200 cause of action. (*Drum v. San Fernando Valley Bar Assn.* (2010) 182 Cal.App.4th 247, 256 – 257 [whether the alleged business practice is immoral, unethical, oppressive, unscrupulous or substantially injurious to consumers requires the court to weigh the utility of the defendant’s conduct against the gravity of the harm to the alleged victim]; see *Cel-Tech Communications, Inc.*, *supra*, 20 Cal.4th at p. 187, fn. 12 [“This case involves an action by a competitor alleging anticompetitive practices. Our discussion and this test are limited to that context. Nothing we say relates to actions by consumers or by competitors alleging other kinds of violations of the unfair competition law such as “fraudulent” or “unlawful” business practices or “unfair, deceptive, untrue or misleading advertising.”]; Complaint, ¶¶ 27, 28, 38, 41, Prayer, ¶¶ (2), (3).)
- Defendant’s demurrer on the ground that the complaint fails to state facts to support the fraudulent prong of a cause of action pursuant to Business and Professions Code 17200 is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) The Court finds that plaintiff alleges facts sufficient to state this prong of a section 17200 cause of action. (*In re Tobacco II Cases* (2009) 46 Cal.4th 298, 312 [“The fraudulent business practice prong of the UCL has been understood to be distinct from common law fraud.”] citing *Day v. AT & T Corp.* (1998) 63 Cal.App.4th 325, 332 [to state a cause of action under section 17200 it is necessary only to show that members of the public are likely to be deceived – actual deception or confusion caused by misleading statements is not required]; Complaint, ¶¶ 27, 28, 38, 41, 48, 49.)

The notice of demurrer does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Rojas v. Yolo Eats, Inc.**
 Case No. CV-2024-1256

Hearing Date: **February 5, 2026** **Department Fourteen** **9:00 a.m.**

Parties are **DIRECTED TO APPEAR** for a hearing on plaintiff's unopposed motion for preliminary approval of class action settlement. (Cal. Rules of Court, rule 3.769(c), (d).) Prior to the hearing the parties are **DIRECTED** to meet and confer and be prepared to discuss selecting a date for a final approval hearing. (Cal. Rules of Court, rule 3.769(e).)